

S.B. Ice & Cold Storage v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 21 March 2017 · Writ-C No. 35399 of 2013 · **Writ dismissed by adopting the order of even date in Writ-C No. 30898 of 2016.**

HEADNOTE

Writ challenging additional security demanded under Para 4.20 of the U.P. Electricity Supply Code, 2005, connected with Vehina Steels and similar matters and earlier protected by an interim restraint on that demand, dismissed by adopting the order of the same date in Writ-C No. 30898 of 2016.

FACTUAL SUMMARY

S.B. Ice & Cold Storage and four others challenged a demand of additional security under Para 4.20 of the U.P. Electricity Supply Code, 2005. On 4 July 2013 the Division Bench connected the writ with M/s Vehina Steels & Alloys Pvt. Ltd. (Writ Petition No. 30582 of 2009) and similar matters, granted time for a counter affidavit, and, following that petition's interim order, restrained the respondents from demanding additional security until further orders. The writ was later taken up on 21 March 2017.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.20

additional security deposit

HOLDING

A writ challenging the licensee's demand of additional security under Para 4.20 of the U.P. Electricity Supply Code, 2005, previously connected with similar matters and protected by an interim restraint on that demand, stands dismissed; this Court adopts the order of the same date in Writ-C No. 30898 of 2016 and gives no independent reasons of its own. ¶ 2

PRINCIPLE TAGS

additional-security Writ challenging additional security demanded under Para 4.20 of the U.P. Electricity Supply Code, 2005, connected with Vehina Steels and similar matters and earlier protected by an interim restraint on that demand, dismissed by adopting the order of the same date in Writ-C No. 30898 of 2016. ¶ 2